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# Reconciling the Ledger: The Rupert's Land Purchase, Settler Capitalism, and Indigenous Dispossession on the Prairies

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See table of contents

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# Reconciling the Ledger: The Rupert's Land Purchase, Settler Capitalism, and Indigenous Dispossession on the Prairies

**ELIZABETH MCKENZIE AND IAN MOSBY***

*Abstract*

*This article examines one of the greatest land grabs in history and what may represent one of the single greatest transfers of wealth from Indigenous peoples to a private company: the so-called Rupert's Land Purchase of 1870. By comparing the lands and money given to the Hudson's Bay Company following Confederation for the transfer of Rupert's Land to Canada with the lands and money set aside for First Nations signatories of Treaties 1–7 (1871–77) and the Métis Nation under the Manitoba Act of 1870, we attempt to establish what this looked like in material terms. In addition to highlighting the scale of wealth dispossession that occurred in both quantitative and qualitative terms, this article is primarily concerned with Canada's actual implementation of these agreements. In recognizing the treaties beyond their written documents, this article seeks to challenge some of the popular narratives surrounding the Rupert's Land Purchase and its significance in histories of stolen Indigenous land and wealth.*

*Résumé*

*Cet article examine l'un des plus grands accaparements de terres de l'histoire et ce qui pourrait représenter l'un des plus grands transferts de richesse des peuples autochtones vers une entreprise privée : l'achat de la terre de Rupert de 1870. En comparant les terres et l'argent donnés à la Compagnie de la Baie d'Hudson après la Confédération pour le transfert de la Terre de Rupert au Canada avec les terres et l'argent réservés aux Premières Nations signataires des Traités 1-7 (1871-77) et à la Nation Métis dans le cadre de l'Acte du Manitoba de 1870, nous tentons d'établir ce que cela signifiait en termes matériels. En plus de mettre en évidence l'ampleur de la dépossession des richesses qui s'est produite en termes quantitatifs et qualitatifs, cet article s'intéresse principalement à la*

* The authors are grateful for funding support from Toronto Metropolitan University and the Social Sciences and Humanities Research Council's Insight Development Grant program.

*mise en œuvre effective de ces accords par le Canada. En reconnaissant les traités au-delà de leurs documents écrits, cet article cherche à remettre en question certains des récits populaires entourant l'achat de la Terre de Rupert et son importance dans l'histoire du vol des terres et des richesses autochtones.*

The Hudson's Bay Company's (HBC) supposed "sale" of Rupert's Land to the newly created Dominion of Canada in 1870 was on the minds of Nêhiyawak (Cree) and Nahkawé (Saulteaux) leaders when they gathered at Fort Qu'Apelle in September of 1874 to discuss a possible treaty with the Crown. Not only did they refuse to begin negotiations until the gathering was moved from the HBC fort, but they demanded to know how the company had been able to sell Nêhiyawak and Nahkawé territories for three hundred thousand pounds sterling to Canada — lands that, they repeatedly asserted, the HBC did not actually own.[1]

On the fourth day of negotiations, the Crown's chief negotiator and the lieutenant governor of Manitoba and the Northwest Territories, Alexander Morris, expressed his frustration with the First Nations leaders for refusing to "speak to the Queen's messengers because of the Company." And so, once again, Nahkawé negotiator Otakaonan (The Gambler) explained to him that it was not possible to negotiate a treaty in good faith while HBC surveyors were staking off their land.

> Otakaonan: The Company have stolen our land. I heard that at first. I hear it is true. The Queen's messengers never came here, and now I see the soldiers and the settlers and the policemen.[2]

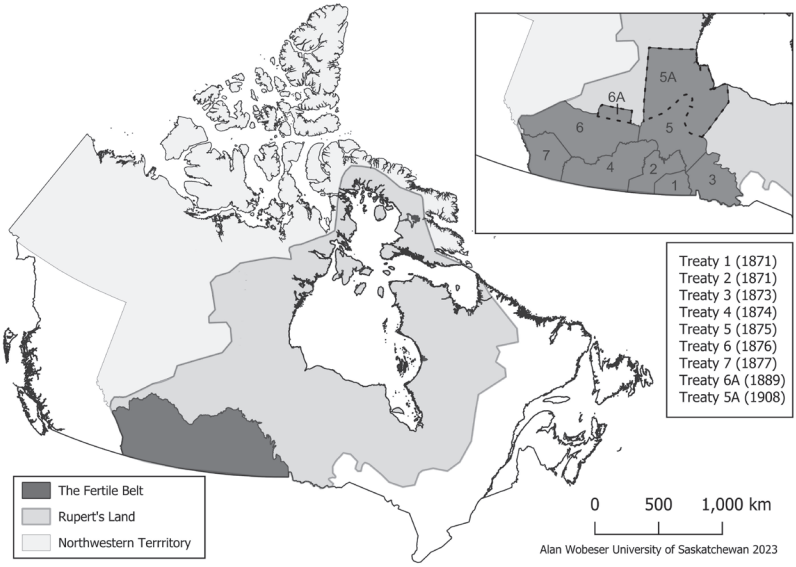
When Morris again expressed his confusion, Otakaonan tried again to clarify the matter.

> Otakaonan: When one Indian takes anything from another we call it stealing, and when we see the present we say pay us. It is the company I mean.
> Morris: What did the Company steal from you?
> Otakaonan: The earth, trees, grass, stones, all that I see with my eyes.[3]

Later that day, Nêhiyawak Chief Pasqua pointed to an HBC officer in attendance and said, "You told me you had sold your land for so much money, £300,000. We want that money."[4]

And so, finally, Morris tried to explain why Canada had paid the HBC for Nêhiyawak and Nahkawé lands the company did not own. He said that through a royal charter issued in the year 1670, "the Queen's father's father gave the Company the right to trade in the country from the frozen ocean to the United States Boundary line, and from the Atlantic Ocean to the Pacific," but that, recently, the Queen had changed her mind on these rights. She reminded the HBC that "no, the land is not yours, the Queen's father's father gave your rights to trade, it is time those rights should stop." The parting gift of three hundred thousand pounds and the grants of land around their company forts were, Morris suggested, a payment for the surrender of the company's trade monopoly — not for the land — because the Queen "would not take rights away from them any more than from you."[5]

Figure 5.1. Rupert's Land, the Fertile Belt and Treaties 1-7




Source: Image courtesy of the authors and Alan Wobeser, 2023.

This, of course, was not true. The British Act of Parliament that enabled the "transfer" of Rupert's Land to the Dominion of Canada made specific reference to the company surrendering all "Lands, Territories, Rights, Privileges, Liberties, Franchises, Powers, and Authorities, so far as the same have been lawfully granted to the said Company" and defined "Rupert's Land" as "the whole of the Lands

and Territories held or claimed to be held by the said Governor and Company."[6] The "surrender" of Rupert's Land, in other words, was never just about a trade monopoly. But at the time of Treaty 4 negotiations, Morris's explanation was enough that, after a long and tense negotiation, both parties signed the treaty.

Otakaonan, Pasqua, and other Treaty 4 negotiators were neither the first nor the last Indigenous peoples to question the validity and fairness of the so-called Rupert's Land Purchase, nor to highlight its importance in relation to treaty-making. Even before the *Deed of Surrender* (1870) was passed by the Canadian Parliament, the Métis at Red River rejected the HBC's supposed "sale." In addition to famously turning back Canadian surveyors trying to enter Red River in 1869, the Legislative Assembly of Assiniboia later presented Canada with a "List of Rights" that included, among other things, a demand that "the bargain of the Hudson's Bay Company with respect to the transfer of government of this country to the Dominion of Canada, never have in any case an effect prejudicial to the rights of the Northwest."[7] Two years after that, in 1871, Weekaskookwasayin (Sweetgrass) — who would be a key negotiator during Treaty 6 negotiations — presented a petition to the first lieutenant-governor of Manitoba and the North-Western Territory, Adams Archibald, which stated: "We heard our lands were sold and we did not like it; we don't want to sell our lands; it is our property, and no one has a right to sell them."[8]

Although First Nations and Métis peoples clearly viewed this sale as an important lens through which they understood their own existing and potential treaty relationships with Canada and the British Crown, historians have not tended to follow their lead. More often than not, the significance of the Rupert's Land Purchase in 1870 is measured by things like the purchase price (three hundred thousand pounds, equivalent to approximately Can$1.5 million at the time), the amount of land given to Canada (lands that, in today's terms, constitute much of modern-day Quebec, Ontario, Manitoba, Saskatchewan, Alberta, Nunavut, the Yukon, and the Northwest Territories), or the amount of land granted to the HBC itself through the Rupert's Land Order (one-twentieth of the surveyed lands in the so-called fertile belt, and an additional fifty thousand acres surrounding their existing posts). And while many accounts will note the role of this specific "real estate" transaction in helping to spark the 1869–1870 Red River Resistance, the meaning of the Rupert's Land Purchase to other Indigenous peoples tends to go overlooked.[9]

Indigenous scholars like Sharon Venne and Adam Gaudry, for their part, have maintained the importance of the so-called sale of Rupert's Land in telling the history of Indigenous dispossession on the prairies.[10] And in 1990, the Qu'Appelle Tribal Council published a research report that highlighted the Rupert's Land Purchase as one of a number of "possible causes for legal action," given that the HBC's sale "seems to have brought greater returns in land to them than did the Indian 'surrender' [in Treaty 4]."[11] In recent years, a handful of settler scholars — including Frank Tough, Elizabeth Comack, and Shiri Pasternak — have also made compelling arguments for revisiting and recentring the transfer as a means of understanding both the history of Indigenous dispossession and the imposition of corporate settler capitalism on the prairies.[12] But, overall, the popular narrative in undergraduate lecture halls and textbooks has remained largely unchanged.[13]

But what would happen, we wonder, if Canadian textbook authors joined Indigenous scholars and communities in taking the claims of Otakaonan more seriously and acknowledged the possibility that, with Canada and Britain's help, the HBC really did steal lands and resources from Indigenous peoples? After receiving its royal charter in 1670, the company never gained title to Rupert's Land from Indigenous peoples. And yet, as we will show, they somehow ended up with some of the best lands in the fertile belt — a massive swath of land bounded "on the south by the United States' boundary; on the west by the Rocky Mountains; on the north by the northern branch of the Saskatchewan; on the east by Lake Winnipeg, the Lake of the Woods, and the waters connecting them."[14] As we will discuss in more detail, First Nations received approximately three million acres in reserves through Treaties 1–7 (1871–77) compared to the HBC's grant of over 6.6 million acres of Indigenous lands through the *Deed of Surrender* in 1870 — lands that, it must be stressed, overlap the exact same territory.[15] Even with the inclusion of the 1.4 million acres promised to the Métis Nation through the Manitoba Act of 1870 (most of which ended up in the hands of white scrip speculators), these numbers put into question claims that Canada acted honourably, justly, and fairly in its dealings with its treaty partners — questions of major importance given the role that concepts like "honour of the Crown" and "fiduciary duty" play in Aboriginal and Treaty law in Canada.[16]

Our goal to compare the Rupert's Land Purchase with the treaties, however, also extends beyond just numbers as we address these

so-called surrenders in both qualitative and quantitative terms. Through a case-study examination of lands surveyed for the HBC in Treaty 1 territory in contrast to lands set aside for First Nations' reserves, we demonstrate that while Indigenous peoples were assured of their treaty right to choose the locations of their reserves, they were frequently prohibited from choosing lands desired by squatters and companies like the HBC. As a result, the seemingly randomized system to acquire lands in the fertile belt that was constitutionally guaranteed to the HBC resulted in the company gaining access to much higher quality lands than what First Nations could retain for their reserves. This land grab also had tremendous long-term effects over the next several decades, in which Indigenous wealth was transferred directly to HBC shareholders and, inevitably, many other multinational corporations in the process.

Our analysis, therefore, primarily focuses on Canada's implementation (or lack of implementation) of the treaties in contrast to the Rupert's Land Purchase. Prairie settler capitalism, we argue, was built directly upon Indigenous dispossession in ways that can be quantified in terms of both stolen land and money — something that is of increasing importance if Canada ever hopes to reconcile the ledger when it comes to its treaty commitments to Indigenous peoples both now and into the future. In the context of larger movements to reinstitute stolen wealth to Indigenous communities, we also hope that this reassessment of the Rupert's Land Purchase can be used as a tool for reimagining what it might look like to truthfully honour the true spirit and intent of the Numbered Treaties in both university classrooms and beyond.[17]

## "The Largest Real Estate Deal Ever"

In the years leading up to the HBC's sale of Rupert's Land to Canada, it is worth noting that the company's position in North America had come under harsh scrutiny. As one of the last imperial joint-stock trading companies of its kind, the HBC was on its last leg as a monopoly in a British Empire committed to so-called free markets and free trade. For most critics in British North America, though, the sticking point was less the trading monopoly than its landholdings: by the 1850s, not only did the HBC throw its royal charter in the face of prospective miners, railway developers, and anyone else interested in the Hudson's Bay drainage basin (otherwise known as Rupert's Land),

but the company was also blocking Canadian expansionism into the "Northwestern Territory" and parts of present-day British Columbia, through a number of other deals and claims.[18]

The general dissatisfaction heard throughout the Canadas prompted the British parliament to appoint a select committee in 1857 to investigate the various claims being made against the company.[19] After further investigation and public hearings, the select committee agreed that the HBC's control of Rupert's Land, the Northwestern Territories, and Vancouver Island needed to come to an end. But while they strongly recommended "it will be proper to terminate the connexion of the Hudson's Bay Company with Vancouver Island," and that "means should also be provided for the ultimate extension of the colony over any portion of the adjoining continent, to the west of the Rocky Mountains" — helping to pave the way for the new colony of British Columbia in 1858 — their decision regarding the fate of Rupert's Land was a little less clear, leaving its status in limbo.[20]

Despite failing to decide the fate of the HBC's claims to Rupert's Land, another important result of the 1857 investigation was the creation of two expeditions — one British and one Canadian — to survey the lands between Lake Superior and the Pacific Ocean.[21] The company's governor, George Simpson, had once told the select committee that Rupert's Land was a barren wilderness, unfit for agricultural development or mass settlement.[22] But the Canadian survey, published by lead geologist and chemist Henry Youle Hind in 1860, largely debunked this claim. In fact, Hind found that Rupert's Land contained a "fertile belt" that promised exceptional soil conditions that were perfect for western methods of farming as well as abundant timber and mineral deposits.[23]

Although the findings of the Hind expedition sparked growing cries in the Canadas that the HBC give up its claims and allow settlers, miners, a telegraph line, and a transcontinental railway through the region, political deadlock in the Canadas prevented any immediate purchase from taking place.[24] Yet, for fear that the knowledge would bring American annexation, in the meantime, Britain's colonial secretary, the Duke of Newcastle, partnered with the president of the Grand Trunk Railway, Edward Watkin, and convinced the HBC to sell the company privately to an investment firm of financiers from eight leading merchant banks in London. And so, in 1863, the International Financial Society (IFS) purchased the majority of the HBC's shares for

£1.5 million — three times the value of the company's capital stock at the time.[25]

The takeover had a transformative effect. Prior to the acquisition, HBC stock was measured solely by its fur trading profits, with its traders, factors, and directors earning their annual income based on the total amount of shares in the company they held.[26] Following its takeover, the IFS began a process to convert all of these "part-owners" into *employees* who would, instead, base their annual income on a fixed salary. After 1863, in other words, shareholders were no longer exclusively the people managing affairs in London or working on the ground to move furs from North America to Europe. Instead, these new shareholders were individual investors contributing financially to the company's overall value, which was increasing rapidly through this process.[27] Whereas in 1856, just prior to the select committee hearing, the HBC's capital stock was worth only five hundred thousand pounds and held by 268 "proprietors," by 1866, the company had sold two million pounds in shares to nearly 1,500 individual investors.[28] And these new investors were not interested in the company's fur trading monopoly. In their prospectus for newly issued HBC stock, after all, the IFS promised big profits from the land holding in the "Company's territory."[29]

After Confederation in 1867, negotiations between the newly created Dominion of Canada, Britain, and the HBC finally began earnestly, but the idea of lining the pockets of investors in London was not widely supported by the Canadian public, and parliamentarians threatened to take the case to the Privy Council.[30] In 1869, in an effort to prevent the matter from dragging on, the colonial secretary presented Canada and the HBC with a last and final offer: that Canada pay the HBC three hundred thousand pounds and give the company one-twentieth of the "fertile belt" as described by Hind.[31] The alternative was to leave any possibility of Canada annexing the territory in limbo before the courts for years — if not decades — to come, while also leaving the HBC with an uncertain future. Canada therefore reluctantly agreed to the *Deed of Surrender* in 1869.[32]

For the HBC, the monetary payment was a far cry from the one million pounds shareholders hoped to gain from the negotiations.[33] But any disappointment was offset by the fact that the company had managed to sell the HBC's uncertain — and arguably dubious — territorial claims to the West in exchange for what they estimated

would be nearly seven million acres of prime agricultural lands — all while keeping their fur trading business, though not its monopoly. To that end, the IFS had effectively taken the HBC's contested territorial claims and transformed them into a legally binding assertion of land ownership, thereby establishing a firm foundation for a wholly new company that would eventually — along with the Canadian Pacific Railway (CPR) — become the quintessential representation of an emerging settler capitalist order that Elizabeth Comack has described as being the product of "corporate colonialism."[34] Not only this, but the HBC was formally divested of its obligations on behalf of the Crown to maintain relations with Indigenous peoples. "Any claims of Indians to compensation for lands required for the purpose of settlement," a clause in the Rupert's Land Order read, "shall be disposed of by the Canadian Government in communication with the Imperial Government; and the Company shall be relieved of all responsibility in respect of them."[35]

So, over the next seven years, Canada negotiated treaties with Indigenous peoples that stipulated — from the perspective of the Crown — a second "purchase" or "surrender" of *the exact same territory* for which they had just negotiated a similar agreement with the HBC. And while we know that Indigenous peoples were the primary instigators for treaties that would recognize their political autonomy and rights to the land in light of Canadian expansionism and the HBC's "sale," the twin processes of the Rupert's Land Purchase and the signing of Treaties 1–7 offer a powerful lens through which to examine what Canada thought each party was owed, as well as the sheer scale of wealth transferred from Indigenous peoples to, in this case, a group of land speculators across an ocean in London.[36]

## Money

On the surface, it might appear that the most straightforward way to assess the relative value assigned by Canada to the Numbered Treaties in comparison with the Rupert's Land Purchase would be to compare what First Nations received in cash treaty annuities with the money granted to the HBC. After all, the figure of three hundred thousand pounds plays an outsized role in the often-repeated story of the Rupert's Land Purchase because it implies — at least on a surface level — that Canada got a "good deal" for the land. Take, for instance, this passage in J. R. Miller's *Skyscrapers Hide the Heavens*: "Canada, with

Britain's help and pressure, succeeded in obtaining the lands for the trifling sum of £300,000 and one twentieth of the land. The HBC, which would take its 5 per cent of the land in many cases adjacent to its posts, was disgruntled by Canadian parsimony and British pressure."[37] This, and similar accounts, with their use (whether ironically or not) of terms like "trifling sum" and "Canadian parsimony," have helped to minimize the sheer scale of wealth transfer from Indigenous peoples to the HBC that took place during this period. They are also quite wrong about the value of three hundred thousand pounds in 1870. The entire HBC, as we have noted above, was valued at only five hundred thousand pounds just a few years earlier, and the sale price listed in the *Deed of Surrender* — equivalent to Can$1.5 million in 1870 — also represented more than 10 percent of Canada's total spending in the fiscal year just prior to the purchase.[38]

This was, in other words, no trifling sum. And from the perspective of the Canadian government, neither was the money being spent on treaty annuities. While many treaties included larger initial cash payments of twelve dollars in the first year and some started with annual payments of only three dollars (See Table 1), by 1878, all signatories of Treaties 1–7 were promised annual payments of five dollars (that have continued to the present day). Following the signing of Treaties 1 and 2 in 1872, Canada paid out $16,463 in annuities. That number increased significantly following the completion of Treaties 3 through 7 to $197,546 in 1879, and reached a peak of $212,660 in 1882.[39] Just the act of getting that many one- and two-dollar bills to signatories, alone, proved to be a serious logistical challenge prior to the completion of the CPR and required the government "to draw moneys on central Canadian banks and sent them west by armed escort in strongbox."[40] In fact, the bills used to seal the negotiations had only just been printed by the Dominion government in 1870 as the first of their kind, and they were not even made official currency in Manitoba until 1876.[41] Nonetheless, by 1885, Canada had indeed paid the signatories of Treaties 1–7 slightly more than the money received by the HBC as part of the *Deed of Surrender* (equivalent to roughly Can$1.5 million).[42] While the value of five dollars has long since genuinely been a trifling sum given the realities of inflation, George Colpitts argues that treaty annuity money was much more meaningful throughout much of the late nineteenth century when First Nations "collectively spent their treaty annuities to purchase goods that supported dances, feasts, and political gatherings."[43]

**Table 1: Treaty 1-7 Annuities**

| | |
|---|---|
| **Treaty 1 (1871)** | $3 per person (changed to $5 per person in 1875) |
| **Treaty 2 (1871)** | $3 per person (changed to $5 per person in 1875) |
| **Treaty 3 (1873)** | $12 per family of five in the first year, $5 per person thereafter |
| **Treaty 4 (1874)** | $5 per person ($12 one-time payment added and distributed in 1875) |
| **Treaty 5 (1875)** | $5 per person |
| **Treaty 6 (1876)** | $12 per person in the first year, $5 per person thereafter |
| **Treaty 7 (1877)** | $12 per person in the first year, $5 per person thereafter |

Ultimately, though, such comparisons between treaty annuities and the payment made to the HBC are of limited usefulness. From the perspective of the HBC, the figure of three hundred thousand pounds was a cash advance on the company's real payment, which was always going to be the estimated seven million acres of Indigenous lands the company was planning to sell to eager settlers. According to Frank Tough, this bet paid off in a big way. Land sales alone brought the HBC a net profit of over ninety-six million dollars between 1891 and 1930—a figure amounting to somewhere in the neighborhood of two billion dollars today—and, between 1905 and 1922, "the Company's dividend rate ranged from 20 to 50 percent."[44] Yet somehow by the end of this, the HBC still had another 2.6 million acres of land in 1930 left to sell—just about four hundred thousand acres shy of the total lands reserved for First Nations in Treaties 1–7 at that time.[45] Land, in other words, was the real capital that the HBC was being paid in—and it was a payment that continued to pay and pay, well after the HBC surrendered its rights to Rupert's Land in 1870.

Indigenous peoples, for their part, had a very different perspective on the values of both land and money during this period. Prior to 1870, few if any financial transactions made on the prairies by both Indigenous peoples and settlers involved the kind of paper money that was paid out as treaty annuities. Most transactions were limited to

dealings with the HBC or other trading companies and were typically governed by the exchange value of standardized trade goods — with a "made beaver" defined as "the theoretical value of a single prime beaver pelt," being the most well-known example.[46] While Indigenous peoples had therefore long been familiar with the kinds of abstract notions of exchange value that paper money represented, the specific value of a single *Canadian* dollar would have still been an unclear and novel concept for most Indigenous negotiators.[47]

Ultimately, treaty negotiations did not hinge on the dollar value of annuities. Even before the large-scale arrival of settlers to their territories, Indigenous peoples had already begun to see their world transformed by the ecological, health, social, and political effects of settler colonialism. Whether it was the dwindling of bison herds (due, in part, to an intentional policy of eradication in the United States), the devastating impact of European diseases like smallpox, or the resource conflicts caused by the movement of Indigenous refugees throughout the Great Plains as a result of the US government's so-called Indian Wars, Indigenous peoples fully understood that their world was rapidly changing.[48] They therefore insisted on treaties, not as a way to receive financial compensation for their lands but, rather, as the basis for peaceful — and mutually beneficial — relationships with settlers that both recognized their political autonomy and rights to the lands but that would also help them transition to a new social, political and ecological reality on the prairies.

Although the annual payment was meant to symbolize an ongoing reciprocal relationship between signatories and Canada — reflecting the long-standing gift-giving practices of the fur trade — First Nations were far more concerned with retaining control over valuable lands and resources while also inserting provisions into the treaties that would promote the future success of their nations in the changing prairie economy. This is why they were able to secure provisions for, among other things, farming implements, cattle, seed grain, farm instructors, and education into the treaties.[49] In fact, despite Canada's repeated instructions to their treaty commissioners to stick to the terms determined in advance of negotiations to prevent unnecessary costs, First Nations leaders proved to be shrewd negotiators.[50] Canada's initial proposal for Treaty 1, for instance, only included an outline for reserve lands and annuities.[51] When First Nations found the negotiations overly one-sided and threatened to leave, however, Archibald and treaty commissioner Wemyss McKenzie Simpson began

to make sweeping promises related to agricultural implements, education, larger reserve allotments, and increased annuities.[52] Similarly, during the Treaty 6 negotiations, First Nations were able to secure the inclusion of government assistance in times of famine and the promise of a medicine chest at the house of each Indian agent for the use of the people — two promises that proved to be extremely relevant within just a few years.[53]

Treaty Elders, however, have long maintained that the true spirit and intent of the treaties are not contained in Canada's version of the treaties, and turn to excluded, orally negotiated treaty rights, such as hunting, fishing, mineral, and harvesting rights, as examples of Canada's violation of their treaty commitments.[54] Recent scholarship supports these arguments and has shown that Indigenous signatories were intentionally misled by treaty commissioners to believe that a mutual agreement had been reached to share the land "to the depth of the plough" with Canadians — not surrender all of the land, water, and resources in the territory.[55] In signing the treaties, Indigenous negotiators were also not informed that they and their descendants would be subjected to Canadian laws such as the Indian Act, that their traditional governance and cultural practices would be prohibited, or that limits would be placed on their freedom to move beyond the boundaries of their reserves or to sell goods on the open market.[56]

Had Indigenous negotiators been informed of these intentions, it is possible that they may have never agreed to the treaties — or at the very least, not for the compensation recorded in either the written or oral accounts. Simply comparing the one-time cash payment the HBC received with treaty annuities paid out in perpetuity, then, only captures one aspect of the total value assigned to each of these negotiations. But one thing that all parties to the Numbered Treaties and the *Deed of Surrender*, alike, had in common was that their priority always boiled down to a single issue: the land.

## "On Principles of Fairness and Justice"

In his opening address of Treaty 1 negotiations, the lieutenant-governor Adams Archibald addressed the crowd with the promise that "the old settlers and the settlers that are coming in must be dealt with *on principles of fairness and justice* as well as yourselves. Your Great Mother knows no difference between any of her people."[57] His outlook toward the future of the western plains may be understood as

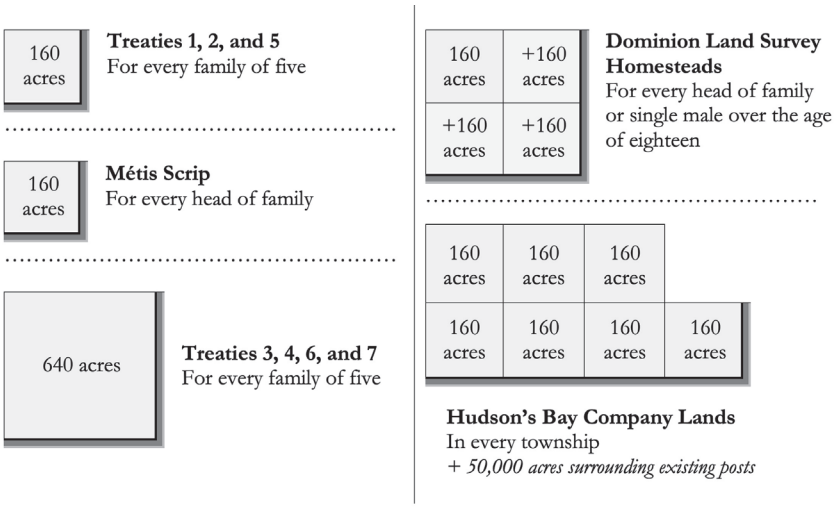
one where Indigenous peoples would be afforded the same rights as settlers under Canadian law — a sentiment, perhaps, that was shared by signatories of the treaty. Another possible interpretation, though, is that he feared Indigenous peoples would demand compensation that would put them at an economic advantage compared to their settler counterparts.

In practice, then, these "principles of fairness and justice" that sought to place Indigenous and non-Indigenous peoples on a level playing field undermined the compensation that signatories of the treaties received for the loss of their lands and resources, particularly when it came to the distribution of land in the form of reserves. In Treaties 1, 2, and 5, covering what is now the province of Manitoba, signatories were afforded reserves that equated 160 acres of land for every family of five. Under the Dominion Lands Act of 1872, incoming settlers could obtain the same for *free* — a quarter-section of a township or 160 acres — so long as they were able to make the necessary "improvements" within three years.[58]

Through *scrip,* Métis heads of family were similarly entitled to 160 acres of land or a one-time payment of $160.[59] And although Treaties 3, 4, 6, and 7 reserved four times the amount of land than the treaties in Manitoba (equivalent to 640 acres per family of five), it should be noted that settlers who proved to authorities that progress had been made on their homestead instantly became eligible for additional grants of adjoining, unoccupied quarter-section lots, making for larger land grants overall.[60] This land policy was not extended to Indigenous signatories of the Numbered Treaties, nor was it available to any Métis head-of-family who purchased land through scrip.[61] In comparison, the HBC was compensated with nearly two sections (or 1,120 acres) in every township over the exact same lands that comprised Treaties 1–7 (see Figure 5.2).

These changes were without precedent for First Nations and Métis peoples. Although the HBC had engaged in treaty relationships with Indigenous peoples prior to the sale of Rupert's Land to Canada, the Selkirk Treaty of 1817, which permitted some early settlers into the Red River Valley, for example, was premised on the idea that settlers would "rent" lands along the Red and Assiniboine Rivers from diverse communities of Anishinaabe, Cree, Saulteaux, and Métis peoples. Living under Indigenous laws and legal principles, the land allowed for both mixed farming communities along the fertile riverbeds, as well as vast prairie hunting grounds for bison and other large

Figure 5.2. Prairie Land Allocations




game animals.[62] By contrast, Canada's plan to transform the West through the Dominion Lands Act into an endless grid of white settler private property — crosscut by survey lines, townships, road allowances and quarter sections — was premised on the destruction of all previously existing customary use rights and Indigenous legal orders that had governed the land for millennia. As John Weaver has argued, Dominion surveyors were therefore tasked with being "forward agents of capitalism and the state" whose work was "essential to recasting the land for the economic ends of colonizers."[63]

The application of the Dominion Lands Act on the prairies has been described as "one of the largest land enclosure projects in world history," and this is a crucial point.[64] Enclosure, after all, "meant not simply a physical fencing of land but the extinction of common and customary use rights on which many people depended for their livelihood."[65] But whereas this process took centuries in England, the passage of the Dominions Land Act in 1872 sought to enact the same revolutionary and destructive process within just a few short decades. And, as Ellen Meiksins Wood argues, these kinds of efforts to reproduce English notions of private property and capitalist accumulation in places like North America almost always "reproduce[d] effects that it had at the beginnings within its country of origin: dispossession, extinction of customary property rights, the imposition of market imperatives, and environmental destruction."[66]

The violence of the imposition of a capitalist regime of private property over top of the existing customary and legal orders that had governed the territory for centuries cannot be understated. After the entrance of Manitoba into confederation, the Métis were the first to be separated from their common woodlots, hayfields, and other lands that — in one fell swoop — were erased by an unyielding grid of private ownership drawn by Dominion surveyors.[67] It is no wonder, then, that when Canada attempted to impose a similar system on Métis settlements in the Northwest, many chose to take up arms rather than let Canada impose its will on their lands. As Irene Spry has argued, the 1885 resistance can, in many ways, be seen as "a last despairing attempt to protect the commons on which they depended for their way of life."[68]

First Nations also saw how incompatible this new land regime was with their sovereignty. It was not only that treaty commissioners had lied during negotiations when they said "you will be free to hunt over [the lands], and make all the use of them which you have made in the past," but no matter how important specific lands were from a spiritual, cultural, social, or economic perspective, Dominion surveyors transformed them into fee-simple private property for the benefit of individual settlers and corporations.[69] Even when it came to setting aside their own lands in the form of reserves, First Nations still seemed to come last. While the HBC and the CPR benefitted disproportionately from government grants of 6.6 million and twenty-five million acres, respectively, by 1913 the total area surveyed into reserves for signatories of Treaties 1–7 was just 3,071,000—less than half of what was transferred to the HBC and only a small fraction of that allotted to the CPR.[70]

Those three million acres may also be much less than what First Nations were entitled to under the per capita terms of the treaties. For one thing, we know that this figure does not include the 874,000 acres that were officially "surrendered" from reserves between 1871 and 1928.[71] But there is also strong evidence that the number of individuals who signed the treaties was often significantly higher than the population used by the Department of Indian Affairs (DIA) to determine reserve allocations. Unlike the HBC, after all—whose land grant was determined as a percentage of the fertile belt and was written into the Dominion Lands Act itself—reserve surveyors needed to use population statistics collected and stored by the DIA to know how much land a First Nation was entitled to. And while gaps in

record keeping, contradictory datasets, and a whole range of other issues made it impossible for us to come up with a precise figure of how much land was owed to First Nations signatories of Treaties 1-7 in total, a closer examination of how reserves were allocated for individual First Nations makes it clear that the timing of reserve surveys often saw First Nations receive only a fraction of the lands that they were promised when they signed the treaty.

The best example of how this worked in practice is the research historian Robert Innes on the Treaty Land Entitlement (TLE) of his own community of Cowessess First Nation in Treaty 4 territory. As Innes shows, based on research done as part of Cowessess' TLE claim during the 1990s, the population figure of 480 used to calculate the size of their reserve in 1882 was likely less than half of the total population at the time the First Nation signed the treaty in 1874.[72] Although there were many factors that contributed to these kinds of population declines across the prairies — including the removal of the Métis from treaty after 1885, or through revoking Indigenous women's "Indian Status" under the Indian Act for marrying white men — Innes makes clear that the situation at Cowessess was primarily because the community "experienced genocide at the hands of the Canadian government."[73] Following the completion of Treaty 7, after all, the abrupt disappearance of the bison herds led to hunger, starvation, and famine for First Nations throughout the prairies, which has been well documented by John Tobias, Maureen Lux, James Daschuck, and others.[74] Despite both explicit written and oral promises of aid in times of famine and of want, however, Canada's response was minimal and intentionally inadequate. As prime minister John A. Macdonald told parliament in 1882, the government's agents were "doing all they can, by refusing food until the Indians are on the verge of starvation, to reduce the expense."[75]

The outcome of this breach of Canada's treaty promises were nothing short of horrifying. As Maureen Lux has calculated using annuity paylists for the years 1884 to 1894, deaths outnumbered births nearly every year in the Battleford Reserves in Treaty 6 territory, with a total population decline of 56.2 percent in just a single decade. Losses in Treaty 4 were comparable as well, where the population of the Crooked Lakes Reserves (which included Cowessess) declined by 41.3 percent and the File Hills Reserves, a staggering 46 percent.[76] The reality, then, is that the typical gap between when the treaty was signed and reserves surveys—a gap which was often years if not

decades for many Treaty 1-7 First Nations—suggests that Cowessess was not alone in their reserve surveys reflecting far less land than they were entitled to when they entered into treaty.

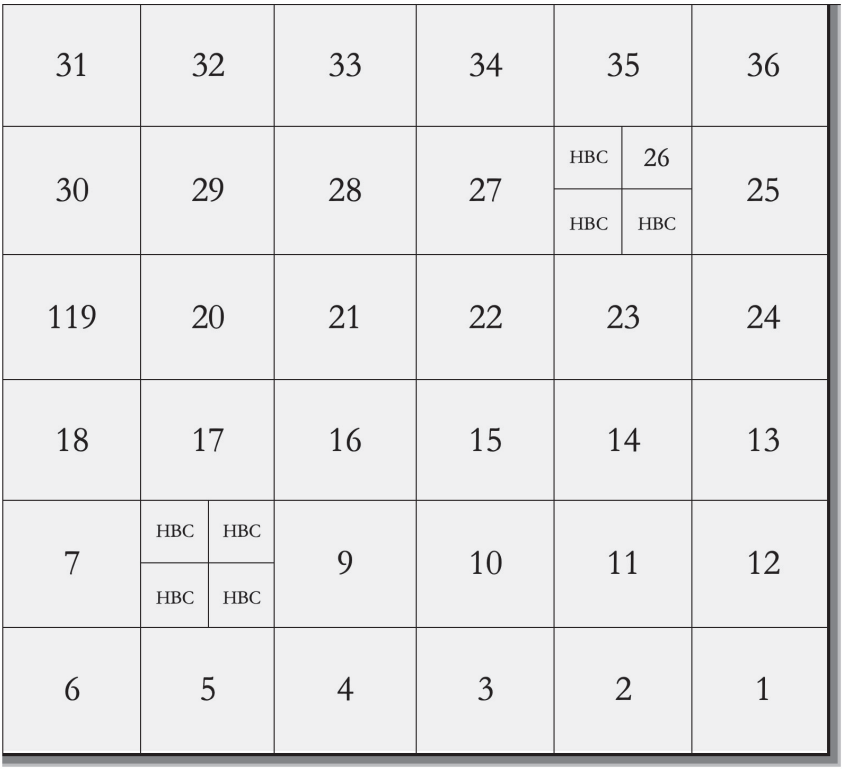
It is no wonder, then, that the land was so disproportionately divided in the favour of corporations like the HBC. As Frank Tough has shown, in 1930, the Department of the Interior reported 2.6 percent (559,301 acres) of the province of Manitoba had been set aside for signatories of the Numbered Treaties, meanwhile 6.1 percent (1,279,965 acres) was granted to the HBC.[77] Yet, aside from these striking numerical comparisons, we also sought to address the quality of those lands in a case study of Treaty 1 territory. The purpose of this is to extend what we understand to be "treaty obligations" beyond the written texts of the treaties, while also adding an additional layer of comparison to this analysis.

## The Land

Between 1871 and 1879, the first Dominion Land Survey (DLS) was completed, allowing the HBC access for the first time to their promise of one-twentieth of the fertile belt in the new province of Manitoba.[78] The townships created through the survey were divided into thirty-six sections, each totalling 640 acres and further subdivided into quarter-sections of 160 acres to be sold as homesteads. To facilitate the transfer of HBC lands, the Dominion Lands Act stipulated that the company be granted Sections 8 and 26 in all townships divisible by five (5, 10, 15, and so on) and — in all other townships — the entirety of Section 8, but only three-quarters of Section 26. These complicated terms to fulfill the one-twentieth provision of the *Deed of Surrender* also allowed the company in some cases to choose additional lands in Section 26 that were unoccupied.[79] The company therefore sent out its own surveyors to further subdivide the quarter-sections and rate each lot on a distinctive class scale of 1 to 4.[80]

In the HBC surveyor's field notes, Class 1 was attributed as the highest quality of land, usually associated with exceptional potential for agricultural use. These lots were labelled "fine prairie land," "excellent soil," and "good and rich loam." Class 2, while also of superior quality, usually contained some unwanted attributes such as "marshy meadows," "sandy soil," or "muck and clay," though these would have only affected a small portion of the lot. In addition, these higher classes included some forested regions for their potential sale value. By

Figure 5.3. Dominion Land Survey Township divided into thirty-six 640 acre sections, showing Hudson's Bay Company lands.



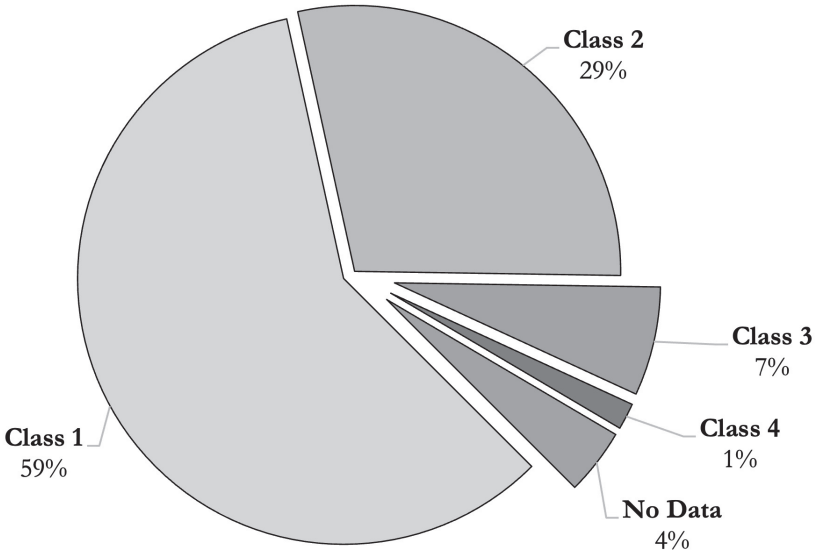

Source: *An Act respecting the Public Lands of the Dominion*, S.C. 1872, c. 23

contrast, lots rated Class 3 or 4 were of much poorer quality, usually located in marshes, wetlands, and floodplains otherwise unsuitable for agricultural use. There is little distinction in the surveyor's notes between these two classes — while one Class 3 lot was simply labelled "Devil's Swamp," another Class 4 was described as "marsh, water about 2 ft deep," both unfit for farming.[81]

Between 1871 and 1873, over five thousand ten-acre lots from the first DLS were rated by HBC surveyors.[82] Out of the total 51,010 acres resurveyed, only 9 percent constituted Class 3 and 4 lands (7 and 2 percent, respectively) while the remaining were either Class 1 (59 percent), Class 2 (29 percent) or were left unlabelled (4 percent) (See Figure 5.4).[83] These figures help to illuminate the reality that, although the DLS created a seemingly randomized system to fulfill

the one-twentieth provision, the HBC was still able to access valuable lots since so much of the land in Manitoba was either very fertile for agricultural development or for the sale of timber. Even then, as Chester Martin has noted, when the federal government appropriated Section 8 and 26 lots from the company for national parks and forests or First Nations' reserves, the HBC was given "indemnity selection" to choose additional timber and grazing lands in lieu of what had been taken.[84]

Figure 5.4. HBC Lands in Manitoba by Classification




Source: "Surveyor's field notes for land allotted to the Hudson's Bay Company, book nos. 1–17," RG 1/6, *Archives of Manitoba,* Winnipeg, MB.

Yet, perhaps even more valuable, the *Deed of Surrender* also authorized the company to claim another fifty thousand acres surrounding their existing posts in addition to the one-twentieth provision, thus granting the HBC access to some of the most fertile river lots in the Red River District and other parts of the fertile belt. Most notably, this included the five-hundred-acre HBC "reserve" surrounding Fort Garry, which encompassed some of the most valuable real estate in Manitoba, and now the present site of Downtown Winnipeg. These land holdings around company forts were among some of the first and most profitable of the HBC's early land sales due to their proximity to developing

prairie towns, railways, and water navigation routes — areas that First Nations were restricted from selecting for reserve lands.[85]

Jean Teillet and other Métis scholars have documented the myriad ways in which the Métis of Red River were, more often than not, also dispossessed of these valuable and productive lots in their homelands. The combination of outright fraud, intentional bureaucratic inefficiency, as well as the use of terror and violence by settlers after 1869, all but guaranteed that the best land would go to white Protestant settlers. As one commissioner tasked with investigating Métis land claims after 1885 wrote concerning the territory ultimately secured by the Métis, "If it had been the object … to select the poorest land available, then they succeeded."[86]

Despite the clear availability of good prairie and timber lands throughout the surveyed lands, First Nations tended to also end up on the margins, with much poorer quality allotments for their reserves than what the HBC had received in its one-twentieth of the fertile belt. As Benjamin Hoy argues, the reserve-surveying era marked a dramatic change in the lands that the Nêhiyawak, for their part, would now come to rely on:

> For the Cree, being home meant, "to be a nation, to have access to land, to be able to raise your own children, and to have political control." The Cree words to describe reserves — "askîhkân ('fake land') and iskonikan ('left-overs')" — emphasized the monumental changes that disease, hunger, and violence unleashed. For the Cree, 1885, the year of their military defeat at the hands of Canadian forces, became known as ê-mâyahkamikahk or the year "where it went wrong."[87]

Sarah Carter explains this shift in *Lost Harvests*, where she argues that Canadian surveyors were instructed to provide First Nations with reserves that were of lesser quality than the lands granted to settlers as homesteads by surveying reserves far from important resources, railway lines, and white settlements. This informal policy, while not always followed, ensured that the most valuable lands were saved for settlers. It also resulted in reserve communities that were economically isolated and located on lands with poorer soil conditions for farming.[88]

In Treaty 1 territory, First Nations were also consistently restricted from choosing the same valuable lands that the HBC had gained access to, and far less attention was given to ensuring that the

reserve surveys matched the agreed terms of the treaty. Although First Nations were assured during treaty negotiations that they would be able to select their own reserve lands, the reality was that they were consistently required to accommodate for competing settler claims. Roseau River First Nation, for example, was restricted from claiming their desired reserve on both sides of the Roseau River from its mouth to its rapids when a group of settlers claimed the land before the reserve could be surveyed.[89] And when setting aside lands for Sakgeeng First Nation, surveyor J. W. Harris marked out a total of 5,750 acres from the reserve to settle claims made by an English mission, settlers, some Métis, and notably the HBC for their post at Fort Alexander.[90]

In one instance, treaty commissioners attempted to integrate Brokenhead Ojibway Nation into the Roseau River reserve because their presence near Fort Garry and the Red River District was perceived as a deterrent to incoming settlement.[91] When Chief Nashakepenais pushed to have his community recognized as distinctly separate and therefore entitled to their own lands and political autonomy, surveyors helped to relocate the First Nation to an isolated reserve over sixty kilometres northeast of Winnipeg and described by the former treaty commissioner J. A. N. Provencher in 1875 as being "very swampy, and to a great extent unfit for farming purposes."[92] The reserve, initially surveyed to be 10,920 acres, was also much smaller than what the First Nation was entitled to under the treaty. Based on a population of 439 persons, and a reserve entitlement of "160 acres per family of five, or in that proportion for larger or smaller families," as recorded in the treaty, the reserve should have amounted to roughly fourteen thousand acres — representing a missing entitlement of over three thousand acres. Although Provencher ordered the extension of 6,500 acres to the reserve in the following year to accommodate for the poor soil conditions, it is unclear whether or not this extension actually provided more suitable land for agricultural purposes, or more or less the same quality as before, as the First Nation continued to encounter difficult growing seasons in the following years.[93] In 1880, Brokenhead was reported as still primarily dependent on hunting and fishing. And, in 1885, while neighbouring reserves at St. Peter's and Fort Alexander produced abundant harvests, all but the potato crops at Brokenhead "turned out poorly."[94]

Meanwhile, on the southwestern shore of Lake Manitoba, Sandy Bay First Nation chose the location of their reserve for its abundance of fish, wild game, and meadows. Yet, as surveyor J. L. Reid reported during the initial survey, the land was only viable for livestock farm-

ing.[95] In the following years, Sandy Bay began experiencing severe flooding from the lake, causing the loss of many crops and livestock. When a formal request was made to enlarge the reserve boundaries just west of the reserve toward higher, available ground, the DIA counter-offered instead to extend the reserve's boundaries either north or south along the lake. In exchange for the additional land, the DIA also expected Sandy Bay First Nation to surrender the arable western portion of the existing reserve so it could be sold to settlers.[96] This perplexing offer to accept even more lands prone to flooding along the water is yet another example of the "principles of fairness and justice" employed in establishing reserves for Treaty 1 First Nations: namely, reserves that often were not only of a lesser *quantity* than what the HBC received but also of much poorer *quality*.[97]

## Further Dispossession

The story of the HBC in the aftermath of the Rupert's Land Purchase presents a near opposite narrative compared to what Indigenous peoples would come to experience after negotiating the treaties. For the HBC, the early twentieth century represented a second great land rush promising monumental returns for the company's lands in the fertile belt, most of which were yet to be sold. Indigenous peoples, in contrast, were stripped of even more of their remaining land holdings and compensated with very little for it in return. But perhaps the biggest advantage to the HBC was that the company was in complete control of its own land holdings and finances. Senior officials could determine when they wanted to sell lands, for what price, and what they would do with the money earned. For First Nations who were subjected to the draconian Indian Act and pass system, the opportunity to access the prairie economy during this same period was severely limited, if not prohibited entirely.[98]

Land sales, however, were not the only way the company reaped additional profits from the Rupert's Land Purchase. As Donica Belisle shows in *Retail Nation,* the HBC was able to capitalize on both its extensive landholdings as well as its existing trade networks to create a new chain of retail stores aimed specifically at the growing population of white settlers. Beginning in 1890 with a two-storey department store in Calgary, the stores quickly expanded across Western Canada, and by 1919, the HBC was Canada's third-largest retailer and making annual sales of nearly fifteen million dollars.[99]

Then, in 1926, the HBC began its pursuit into the petroleum industry with the creation of Hudson's Bay Marland Oil, later changed to Hudson's Bay Oil and Gas (HBOG) in 1929.[100] The company's ability to buy up additional lands for extractive resource development speaks volumes to the "rights" afforded to the company that were simultaneously denied to Indigenous signatories of the treaties, as the HBC played a pivotal role in the development of Canada's oil and gas sectors. Over the course of the twentieth century, HBOG accumulated more than 13.6 million net acres of land in Canada — 5.7 million of which were located in the west — and held an additional 8.9 million acres abroad.[101] A *New York Times* article published in 1981 reported that the company was the "second-largest natural gas producer in Canada," and, in Western Canada, the owners of "one of the largest land positions in the industry." That year, for a majority share of 52.9 percent of HBOG, Dome Petroleum purchased $1.43 billion in shares, and provided the HBC with an additional $245 million in cash. Importantly, however, these numbers only provide us with a glimpse into the total value the HBC earned from its participation in resource extraction.[102]

In stark contrast, the research of economist Carl Beal shows that, between 1898 and 1928, nearly 380,000 acres were removed from reserves in Saskatchewan through subsequent surrender agreements, quantifying a decline of 25 percent of the total land holdings First Nations held in that province.[103] Beal also found that the overwhelming majority of this land was located in rapidly developing regions due to a government policy that sought to establish infrastructure and transportation corridors at the expense of Indigenous communities.[104] In practice, this meant that First Nations who were located on desirable reserve lands were presented with "incentives" to surrender portions of their reserves in exchange for either lands of better quality or the cash required to build community housing, purchase rations in times of famine, or — where the government failed to supply its treaty obligation of agricultural implements — as an opportunity to "acquire the machinery, equipment and operating capital necessary to build the economic base of reserve communities."[105]

Importantly, Beal has also provided some insights into the monetary value assigned to reserve surrenders. While the HBC rarely sold farmlands in rural Saskatchewan for less than ten dollars an acre, Beal noted that the Department of the Interior sold surrendered reserve lands in the late nineteenth century for between $1 and $1.50 per acre.[106] After the DIA took its cut (90 percent prior to 1906, changed

to 50 percent thereafter) the revenue was further reduced by a "land management fee," and, after 1906, it was no longer released in full. Instead, the cash obtained through the sale would be placed either in the hands of the Indian agent directly or placed in a government-controlled trust account.[107] Similar to treaty negotiations, Beal argues that, in several instances, the government also failed to report negotiated provisions into the written surrender documents resulting, once again, in a failure to provide the full negotiated compensation to Indigenous communities.[108]

Sarah Carter's research similarly provides extensive insights into the government policies that restricted First Nations' participation in the prairie economy. The peasant farming policy, which aimed to reduce the overall cost of farming implements distributed on reserves and promote "self-sufficient" communities, simultaneously dispossessed Indigenous peoples of the market economy by greatly restricting their ability to produce surplus harvests.[109] During the First World War, lands not under cultivation in support of the war effort increasingly came under direct attack by settlers and policy makers alike. But rather than appropriate fertile lands from land speculating giants like the HBC, MPs turned toward First Nations to obtain the surrender of "unused" portions of their reserves so not to risk "offending politically powerful interests." Working hand-in-hand with the Soldier Settlement Act of 1917, amendments to the Indian Act in 1918 granted the DIA with unprecedented powers to allocate reserve lands and finances toward the creation of privately leased lots for returning veterans. When DIA authorities complained that these leased lots created too many additional responsibilities for Indian agents — and provided "too much" annual revenue to band governments — the system in place was changed to obtain the outright surrender of leased reserve lands so that veterans could claim full property rights.[110] According to Beal, out of the $3.2 million in revenue the DIA received from surrenders between 1898 and 1930 in Saskatchewan, more than a quarter of the total profit ($893,000) was a result of lands appropriated by the Soldier Settlement Act.[111]

## Reconciling the Ledger

In April 2022, in a ceremony attended by settler and Indigenous politicians and business leaders, the HBC announced that it was officially transferring ownership of its flagship downtown Winnipeg store to the thirty-four Anishinaabe and Dakota nations who make up Mani-

toba's Southern Chiefs' Organization (SCO). "Today's announcement is reconciliation in action," prime minister Justin Trudeau told the audience, while HBC governor Richard Baker remarked: "This will be a legacy-defining project created by community for community."[112]

While both statements may or may not turn out to be true, the reality of this real estate transaction encapsulates the fraught relationship between the HBC, Canada, and Indigenous peoples since the Rupert's Land Purchase was finalized in 1870. After all, when a real estate appraisal firm conducted an analysis of the iconic heritage building in 2019, they concluded that the 655,755-square-foot store had a market value of zero dollars and that it was, in fact, "worth even less than that because it has a tax liability of $302,298." Simply bringing the empty building up to code would cost upwards of $111 million.[113] Even with significant funds promised by the federal and provincial governments for the redevelopment project, the SCO will need to spend millions of dollars of their own money and are expected to face an estimated shortfall of thirty million dollars.[114]

The transfer of the HBC's Winnipeg store therefore very much fits within a long tradition of giving Indigenous peoples the HBC's *iskonikan* or 'left-overs' when it comes to land and wealth. Winnipeg-based Cree journalist Rick Harp, for his part, suggested that the transfer was "like somebody squatted in my back yard, and they took all my lumber, and they built a house with it—lived in it for *ever*, where it's completely run down—and they're like, 'You know what: do you want it?'"[115] Is a gift really a gift, after all, if you save money by giving it?

While Harp and others readily admit that the transfer of the Winnipeg store is an important *symbolic* gesture, it's clear that it will not even begin to pay back the land and wealth that, as Otakaonan rightly assessed almost exactly 150 years ago, had been stolen from Indigenous peoples for the benefit of the HBC and other settler corporations. Nor does it address the role that Canada played in granting Indigenous lands to a private company, or to the millions of other settlers who benefitted directly and enormously from Indigenous dispossession in Rupert's Land.

Yet we hope that this reassessment of the Rupert's Land Purchase can extend beyond the pages of this article. From university classrooms to parliamentary debates, and treaty land entitlement cases in federal courts, much more needs to be said about how to reconcile the ledger. Canada granted the HBC more than 6.6 million acres of prime agricultural lands in the fertile belt, while it set aside for First

Nations a mere three million in some of the most isolated and infertile regions of their own territory. Canada also created policies under the Indian Act that sought to prohibit, restrict, and hinder the economic development of Indigenous communities, all while promoting a new capitalist social and legal order that the HBC was more than willing to partake in for their own insurmountable benefit. This story, then, is also about what it would have meant to have implemented the treaties honourably, fairly, and justly in acknowledgement of their true spirit and original intent. If the Rupert's Land Purchase and the "rights" afforded to the HBC were given to Indigenous peoples, Canada might look like a very different place. And, as much as some historians will turn their nose up to "what if" histories, this reimagining is necessary to rethink the present and future. Prairie settler capitalism was built directly upon Indigenous dispossession in ways that can be quantified in terms of both stolen land and money, and these kinds of broader discussions and research are needed when it comes to reconciliation and decolonization both now and into the future.

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## Endnotes

1 See Alexander Morris, "The Qu'Appelle Treaty," *The Treaties of Canada* (Toronto: Belfords, Clarke & Co., 1880); Arthur J. Ray, Frank Tough, and J. R. Miller, *Bounty and Benevolence: A History of Saskatchewan Treaties* (Montreal: McGill-Queen's University Press, 2000), 108–109.

2 Morris, "Qu'Appelle Treaty," 101.

3 Morris, "Qu'Appelle Treaty," 102.

4 Morris, "Qu'Appelle Treaty," 102.

5 Morris, "Qu'Appelle Treaty," 106.

6 Rupert's Land Act, 1868, 31–32 Vict., c. 105 (UK), https://www.justice.gc.ca/eng/rp-pr/csj-sjc/constitution/lawreg-loireg/p2t11.html; see also Order of Her Majesty in Council admitting Rupert's Land and the North-Western Territory into the union, dated the 23rd day of June 1870 (UK), https://www.justice.gc.ca/eng/rp-pr/csj-sjc/constitution/lawreg-loireg/p1t31.html.

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13 Bain, *Pearson Canadian History 8, Unit 2*, H 78; Bothwell, *histoire du Canada*, 202; Belshaw, *Canadian History*, 44.

14 Order of Her Majesty in Council, 1870.

15 While the company claimed it was owed 7,031,257 acres, it only acquired 6,639,059 acres in total. See Chester Martin, *"Dominion Lands" Policy* (Montreal: McGill-Queen's University Press, 1973), 25–26.

16 See "Honour of the Crown," Centre for Constitutional Studies, 4 August 2021, https://www.constitutionalstudies.ca/2021/08/honour-of-the-crown/; or the weight given to both of these concepts in the recent decision in the recent Ontario Superior Court decision, Restoule v. Canada (Attorney General), 2018 ONSC 7701 (CanLII), http://canlii.ca/t/hwqxg.

17 For more information and some of our earlier work on the subject, see the Yellowhead Institute's 2021 *Cashback* Red Paper: https://cashback.yellowheadinstitute.org/.

18 Gary Spraakman, *Management Accounting at the Hudson's Bay Company* (Bringley: Emerald Group, 2015), 107; see also Geoffrey Jones, *Merchants to Multinationals,* (New York: Oxford University Press, 2002): 22.

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30 Spraakman, *Management Accounting*, 108; for more information on public debate surrounding the negotiations of the *Deed of Surrender,* see Tough, "Aboriginal Rights," 233–38; Myers, *History of Canadian Wealth,* 132–46; and Galbraith, "Hudson's Bay Land Controversy," 457–78.
31 Cottrell, *Investment Banking in England*, 145; and Galbraith, "Hudson's Bay Land Controversy," 475.
32 Frank Tough writes that the total territory transferred to Canada in this agreement amounted to 63.5 percent of the country's modern land mass, totalling 6,276,609 square kilometres. See Tough, "Great Inheritance," 24–26.
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39 Figures calculated based on the correspondence in RG10, vol. 3583, file 1050, LAC; RG10, vol. 3693 file 14335, LAC; and RG10 3712 file 20270, LAC.

40 George Colpitts, "Treaty 6 Cree Annuity Spending in the Territorial Economy of Western Canada, 1873–1905," *Ethnohistory* 67, no. 1 (2020): 34. See also the correspondence in RG10, vol. 3693 file 14335, LAC.

41 Brian Gettler, *Colonialism's Currency: Money, State and First Nations in Canada, 1820–1950* (Montreal: McGill Queen's University Press, 2020), 41, 53.

42 This rough estimate is based on our calculations of the correspondence cited in RG10, vol. 3583, file 1050, LAC; RG10, vol. 3693 file 14335, LAC; and RG10 3712 file 20270, LAC, as well as from the annual reports of the Department of Indian Affairs during those same years.

43 Colpitts, "Treaty 6," 30.

44 Tough, "Aboriginal Rights," 245.

45 Martin, *"Dominion Lands" Policy*, 26.

46 Gettler, *Colonialism's Currency*, 95.

47 Gettler, 41, 53.

48 Carter, *Lost Harvests*, 54–55; Tobias, "Canada's Subjugation"; Irene Spry, "The Tragedy of the Loss of the Commons in Western Canada," in *As Long as the Sun Shines and Water Flows: A Reader in Canadian Native Studies*, ed. Ian A. L. Getty and Antoine S. Lussier (Vancouver: UBC Press, 1983): 203–28.

49 See James Cote et al., *We Are All Treaty People* (Treaty Relations Commission of Manitoba, 2017); Tim E. Holzkamm and Leo G. Waisberg "'We Have Kept Our Part of the Treaty,'" *Grand Council Treaty #3,* 3 October 2011; Treaty 7 Elders et al., *The True Spirit and Original Intent of Treaty 7* (Montreal: McGill-Queen's University Press, 1996); or Carry the Kettle First Nation, *Owóknage* (Regina: University of Regina Press, 2022).

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51 Alexander Morris, "The Stone Fort and Manitoba Post Treaties," in *Treaties of Canada,* 28–29; Krasowski, *No Surrender,* 72.

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53 "Copy of Treaty No. 6 between Her Majesty the Queen and the Plain and Wood Cree Indians…" (Ottawa: Queen's Printer and Controller of Stationery, 1964), Government of Canada (website), accessed 19 November 2023, https://www.rcaanc-cirnac.gc.ca/eng/1100100028710/1581292569426.

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the actual agreement reached in 1873, accessed 19 November 2023, https://storynations.utoronto.ca/index.php/the-paypom-treaty/.

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56 Treaty 7 Elders et al., *True Spirit*, 218.

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81 "Surveyor's field notes."
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84 Martin, *"Dominion Lands" Policy*, 25.
85 Between 1872 and 1879, the company sold 150 lots in Winnipeg for a profit of nearly one hundred thousand dollars — a profit that excluded all remaining unpaid balances calculated at a rate of 7 percent interest calculated annually. See "Land sales register of the Hudson's Bay Company lots in Winnipeg," RG1/41/1, Archives of Manitoba.
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